



United States
Attorney's Office
Western District of Tennessee



Memphis Doctor to Pay \$375,296.90 to Settle Fraudulent Billing Allegations

Tuesday, November 18, 2025

For Immediate Release

U.S. Attorney's Office, Western District of Tennessee

Memphis, TN – A Memphis nephrologist providing end-stage renal disease, or ESRD, treatments to Medicare beneficiaries will pay \$375,296.90 to resolve False Claims Act allegations brought against him. D. Michael Dunavant, United States Attorney for the Western District of Tennessee, announced the agreement today.

Dr. Mark Shermer was alleged to have falsely billed Medicare for ESRD treatment visits to dialysis patients that he never actually performed. The civil settlement resolved these allegations brought under the *qui tam* or whistleblower provisions of the federal False Claims Act. Under the *qui tam* provision, a private party can file an action on behalf of the United States and receive a portion of the settlement if the government takes over the case and reaches a monetary agreement with the defendant. The case is captioned *United States ex rel. Davis*, 2:21-cv-2754-JTF-cgc (W.D. Tenn.).

"Falsely billing Medicare for dialysis procedures that never occurred contributes to the soaring costs of health care and ultimately harms actual patients," said U.S. Attorney D. Michael Dunavant. "Settlements like this protect public funds and safeguard the beneficiaries of federal health care programs."

"Providers who submit false claims to Medicare compromise the integrity of federal health care programs and the services they are meant to provide," said Special Agent in Charge Kelly Blackmon of the Department of Health and Human Services Office of Inspector General (HHS-OIG). "HHS-OIG is proud to work alongside our law enforcement partners to safeguard taxpayer dollars and uphold the trust placed in these vital programs."

The claims settled by this agreement are allegations only, and there has been no determination of liability.

The case was investigated by the Department of Health and Human Services Office of Inspector General and the Tennessee Bureau of Investigation.

Assistant United States Attorney Sarah Pazar Williams represented the United States in this case.

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Updated November 18, 2025

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